

21STCV36712 21STCV36712

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 21STCV36712 Hearing Date: August 18, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

BENJAMIN DEVINNEY,

Plaintiff,

vs.

CR&R INCORPORATED; CERTIFIED ENTERPRISES,
INC.; PINNACLE DISPOSAL & ENVIRONMENTAL SERVICES, INC., and DOES 3 TO 10, Inclusive,

Defendants.

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CASE NO.: 21STCV36712

ORDER

DENYING DEFENDANT CR&R INCORPORATED'S

MOTION FOR SANCTIONS PURSUANT TO CODE OF CIVIL PROCEDURE §§ 128.5 AND 128.7

I.

BACKGROUND

Plaintiff Benjamin

Devinney ("Plaintiff") filed this action against Defendant CR&R

Incorporated ("CR&R") for damages Plaintiff sustained after inspecting a

container owned by Defendant. Plaintiff alleges the subject container's ladder

was broken, so Plaintiff climbed on the corner of the container. Plaintiff

stabilized himself with one foot on the container and the other on the

container's contents. As Plaintiff pushed the container's contents down, the

contents shifted and caused Plaintiff to fall backward off the container. On

June 12, 2023, CR&R filed its Cross-Complaint against Cross-Defendant Performance Team LLC ("Performance"). On November 14, 2025, Plaintiff served Defendant Certified Enterprises, Inc. ("Certified") with process.

CR&R moves for sanctions pursuant to CCP §§ 128.5 and 128.7.

II.

PROCEDURAL

HISTORY

On October 5, 2021, Plaintiff filed his Complaint, alleging (1) Negligence; and (2) Negligent Hiring, Training, Supervisions, and Retention.

On November 30, 2021, CR&R filed its Answer.

On June 12, 2023, CR&R filed its Cross-Complaint against Performance Team, LLC ("Performance"), alleging (1) Implied Indemnity; and (2) Express Indemnity.

On August 28, 2023, Performance filed its Answer.

On November 12, 2025, Plaintiff substituted in Certified Enterprises, Inc. ("Certified") for Doe 1.

On November 18, 2025, Plaintiff filed a proof of service showing it served Certified with process on November 14, 2025.

On February 20, 2026, Plaintiff substituted in Pinnacle Disposal & Environmental Services, Inc. ("Pinnacle"), for Doe 2.

On April 23, 2026, Plaintiff dismissed Pinnacle without prejudice.

On May 21,
2026, the Court corrected nunc pro tunc the May 7, 2026 Minute Order by striking it.

On June 3,
2026, the Court granted Certified Enterprises, Inc.'s Motion to Dismiss with prejudice.

On June 5,
2026, Plaintiff dismissed Pinnacle with prejudice.

On June 30,
2026, CR&R filed the instant Motion for Sanctions.

On August 11,
2026, Plaintiff filed an Opposition.

On August 11,
2026, CR&R filed a Reply.

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III.

LEGAL STANDARD

"By presenting to the court, whether by signing, filing, submitting, or later advocating, a pleading, petition, written notice of motion, or other similar paper, an attorney or unrepresented party is certifying that to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances, all of the following conditions are met: (1) It is not being presented primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation. (2) The claims, defenses, and other legal contentions therein are warranted by existing law or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law. (3) The allegations and other factual contentions have evidentiary support or, if specifically, so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery." (Code Civ. Proc. §128.7(b).)[1]

"If

warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion." (Code Civ. Proc. § 128.7(c)(1).)

"Under

section 128.7, a court may impose sanctions if it concludes a pleading was filed for an improper purpose or was indisputably without merit, either legally or factually. . . A claim is factually frivolous if it is 'not well grounded in fact' and is legally frivolous if it is 'not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.' In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. A claim is objectively unreasonable if any reasonable attorney would agree that it is totally and completely without merit." (Bucur v. Ahmad (2016) 244 Cal.App.4th 175, 189 [Code of Civil Procedure 128.7 sanctions properly imposed where it was obvious that plaintiffs' claims were barred by res judicata, judicial admissions and judicial estoppel].) No showing of bad faith is required. (In re Marriage of Reese & Guy, supra, 73 Cal.App.4th at p. 1221.) However, "section 128.7 sanctions should be 'made with restraint' [Citation], and are not mandatory even if a claim is frivolous." (Peake v. Underwood (2014) 227 Cal.App.4th 428, 448.)

Any sanction

imposed for violation of Code of Civil Procedure § 128.7(b) must be limited to what is sufficient to deter repetition of the conduct by others similarly situated. A sanction may be a directive of a nonmonetary nature, or a monetary penalty payable to the moving party of some or all of the reasonable attorney's fees and expenses incurred as a result of the violation. (See Code Civ. Proc. § 128.7(d).)

IV.

ANALYSIS

As an initial

matter, the Court will disregard CR&R's request for sanctions pursuant to § 128.5 and apply only the legal standard for § 128.7. "A motion for sanctions under this section shall be made separately from other motions or requests and shall describe the specific conduct alleged to violate subdivision (b)." (Code Civ. Proc. § 128.7(c)(1) [emphasis added].) Because a motion for § 128.7 sanctions must be made separately from other requests and the instant Motion argues

whether the conduct violates § 128.7(b), the Court will construe CR&R's Motion as seeking sanctions pursuant to § 128.7 only. (See Mot. at 4:23, 7:13-21.) Before reaching the merits of the Motion, the Court turns to whether the Motion complied with the safe harbor provision pursuant to § 128.7.

Code of Civil

Procedure § 128.7(c)(1) provides that, "[n]otice of [a Section 128.7 Sanctions Motion] shall be served as provided in Section 1010, but shall not be filed with or presented to the court unless, within 21 days after service of the motion, or any other period as the court may prescribe, the challenged paper, claim, defense, contention, allegation, or denial is not withdrawn or appropriately corrected..."¿

The 21-day

period is calculated in light of CCP § 12 (time computed by excluding the first day and including the last), so that the sanctions motion must not be filed before the 22nd day after service. (See *Broadcast Music, Inc. v. Structured Asset Sales, LLC* (2022) 75 CA5th 596, 605-606.) Where the sanctions motion is served electronically, the 21-day safe harbor provision is extended by two court days. (See *Transcon Fin'l, Inc. v. Reid & Hellyer, APC* (2022) 81 Cal.App.5th 547, 551 [applying former Code of Civil Procedure § 1010.6(a)(4)(B), now Code of Civil Procedure § 1010.6(a)(3)(B)]).)

CR&R

contends it served a copy of this Motion on Plaintiff's counsel by email on June 9, 2026, with the safe harbor period expiring on June 30, 2026. (See Declaration of Courtney R. Arbucci filed June 30, 2026, ¶18, Exhibit G.)

CR&R

served its Motion on Plaintiff by electronic service, thus Plaintiff's last day to take corrective action was 21 days plus two court days from June 9, 2026. The last day of Plaintiff's safe harbor period was therefore not, as CR&R claims, June 30, 2026 (21 days from June 9), but July 2, 2026 (two court days later). CR&R's motion was filed June 30, 2026, which is before the safe harbor period ended.

Thus, because

CR&R has not complied with the safe harbor provision, the Court DENIES CR&R's Motion. (See *Cromwell v. Cummings* (1998)

65 Cal.App.4th Supp. 10, 15 [the 21-day safe harbor provision is strictly enforced; substantial compliance is not enough.]; Transcon Financial, Inc. v. Reid & Hellyer, APC (2022) 81 Cal.App.5th 547, 551 [“the law requires strict compliance with the safe harbor provisions.”] Failure to comply with the safe harbor provision ‘precludes an award of sanctions’ [internal citations omitted]; Goodstone v. Southwest Airlines Co. (1998) 63 Cal.App.4th 406, 418-419 [no sanctions can be imposed under a motion filed before expiration of the 21-day “safe harbor” no matter how improper the conduct sought to be sanctioned].)

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V.

CONCLUSION

Based on the foregoing, the Court DENIES CR&R’s Motion for Sanctions.

IT
IS SO ORDERED.

DATED: August 18, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.